PATRICIA NONSIKELELO NYABADZA
versus
MINISTER OF LANDS, AGRICULTURE, WATER, FISHERIES AND RURAL DEVELOPMENT
and
MAHSEER INVESTMENT PRIVATE LIMITED

HIGH COURT OF ZIMBABWE
MUSITHU J
HARARE: 5 June & 26 June 2025

Opposed Application - Chamber Application for Condonation

S. Banda, for the applicant
S. Chinwadzimba, for the 2nd respondent

MUSITHU J: This is an application for condonation for the late filing of an application for the review of the first respondent's decision to withdraw an offer letter issued to the applicant. The applicant sought leave to file the application for review within seven days of the order being granted in the event that the court was persuaded to grant the relief. The application was opposed by the second respondent. The first respondent's legal practitioners advised by way of a letter dated 27 October 2023, that he was not opposed to the relief sought.

Background to the Applicant's Case

The applicant is one of the majority shareholders in an entity known as Tiltrac Investments (Pvt) Ltd (Tiltrac or the company). On 30 September 2002, Tiltrac purchased a 40-hectare portion of a farm known as Buckland Estate (the farm) from Craighall Estate. After the purchase of the farm, the applicant took occupation of the farm through Tiltrac and commenced farming operations which included flower production for export and horticulture for the local market.

In 2005, the whole of Buckland Estate was acquired by the State for agriculture resettlement purposes. The acquisition was made notwithstanding that the farm was owned by a consortium of indigenous black farmers who included the applicant, through their family business under Tiltrac. The company, together with the said consortium of indigenous farmers approached the first respondent challenging the acquisition of the farm as it was contrary to the spirit and

purpose of the land reform programme. After being satisfied that that Buckland Estate was indeed wholly owned by indigenous farmers, the first respondent proceeded to issue an offer letter in the applicant's name on 26 January 2009.

The applicant continued with peaceful occupation of the farm and carrying out farming operations that had commenced when the farm was initially purchased. In an unexpected turn of events, on 4 November 2011, the first respondent issued the applicant with a letter advising her of the withdrawal of her offer letter. This was despite the fact that the applicant had not been served with a notice of the first respondent's intention to withdraw the offer letter, thus denying her the opportunity to make representations before that decision was made. No reasons were also provided for the withdrawal.

The applicant claims that she made several efforts to challenge the first respondent's decision to withdraw the offer letter through various meetings and other forms of communication, without much success. She would be advised that the first respondent was looking into the matter, and she could continue in occupation of the farm whilst the first respondent attended to the matter in order to regularise her occupation. She continued to be in possession and occupation of the farm to this day.

Despite the first respondent's undertaking that the applicant's possession and occupation of the farm would be regularised, no concrete efforts were made to resolve the matter. The applicant had started to encounter challenges of unlawful dispossession of the farm from third parties. It was for that reason that the applicant was compelled to approach this court for the relief that she sought in the present matter. Such relief would enable her to challenge the first respondent's decision on review.

The draft application for review, which was attached to the present application, summarised her grounds for review as follows: the first respondent erred in denying her the opportunity to make representations on a matter that affected her rights, interests and legitimate expectation; the first respondent erred in not disclosing the reasons for the withdrawal of the offer letter. In terms of the law, the first respondent was obliged to give reasons that founded his decision to withdraw an offer letter he had issued in her name; no regard was had to the circumstances of the matter, more significantly that the applicant was an indigenous owner of the farm prior to its acquisition by the State.

The applicant averred that the delay in bringing the application was not inordinate if regard was had to the circumstances of the matter. She harbored the reasonable view that the undertaking by the first respondent to regularize her possession and occupation of the farm was sufficient to clothe her with rights of possession and occupation, and that she would not be dispossessed. It was only recently that the second respondent sought to take the law into its own hands by dispossessing her of certain portions of the farm. The second respondent alleged that it was the holder of an offer letter in respect of the same farm, which offer letter was purportedly issued by the first respondent.

The applicant further averred that her constitutional and administrative rights were at risk of being violated, making the case all the more important. The first respondent could not be allowed to act arbitrarily and without due regard to the dictates of the law. The first respondent had not followed due process of the law in withdrawing the applicant's offer letter. For that reason, the applicant contended that the prospects of success in the application for review were therefore high.

The Second Respondent's Case

The second respondent averred that the alleged purchase of 40 hectares of farm land was a nullity in the absence of a sub division permit. It was also averred that the second respondent's rights in the land arose on 4 November 2011 following the issuing of an offer letter in its favour by the first respondent. The second respondent dismissed the applicant's explanation for the delay in taking action as being devoid of merit and an abuse of court process, in the absence of proof to substantiate the averments.

The second respondent also averred that the applicant had failed to satisfy requirements of an application of this nature. Following the withdrawal of the offer letter in November 2011, the applicant had remained in unlawful occupation of the farm. It was also averred that the intended review application was being placed before the court prematurely because the applicant had not exhausted all the internal remedies available to her. This court would be usurping the first respondent's powers if it were to intervene at this stage.

The second respondent also argued that the applicant had no rights to the farm as it belonged to the second respondent from November 2011. The second respondent claimed to have made vast improvements on the farm since it took possession some ten years ago. The court was urged to dismiss the application for lack of merit.

The Submissions

Mr *Banda* for the applicant submitted that although the delay was admittedly inordinate, the applicant had owned up to the delay by explaining the circumstances that caused it. The applicant had not litigated because she thought her engagements with the first respondent would yield positive results. That there were engagements was not denied by the first respondent. Counsel further submitted that the applicant's expectation was that her pursuit of the available domestic remedies would successfully resolve the matter. The applicant occupied the farm in 2011 and had continued to do so.

Mr *Banda* also submitted that the main review application had good prospects of success as demonstrated in the grounds for review that the applicant intended to motivate. The first respondent was an administrative authority which was required to act lawfully in terms of s 4 of the Administrative Justice Act [*Chapter 10:28*] (the AJA). The issue that the court was required to consider was whether the decision by the first respondent to withdraw the applicant's offer letter without giving notice was lawful. The first respondent had not disputed the applicant's averment that he had not acted lawfully. What was not disputed must be taken to have been admitted.

In her response Ms *Chinwadzimba* for the second respondent submitted that the delay of 12 years was too inordinate to be condoned. Nothing had also been placed before the court to prove the alleged engagements between the applicant and the first respondent. The applicant had failed to demonstrate that it was pursuing the matter during that period.

As regards the prospects of success, counsel submitted that it was incumbent upon the applicant to approach the first respondent with a request for his reasons in line with s 6 of the AJA. Further, it was also not clear in terms of which law the application was being made. That infraction, according to counsel, made the application fatally defective.

The Analysis

Whether the application was properly before the court

Before delving into the merits of the matter I need to dispose of the point of law raised on behalf of the second respondent. The point was that the application was fatally defective for want of citation of the law or the relevant provision of the rules in terms of which it was made. In response to the by Ms *Chinwadzimba*, Mr *Banda* argued that the raising of the point at this stage of the proceedings was improper as the applicant was ambushed. Counsel further argued that the

point was insignificant because there was no provision in the rules which made an application fatally defective for failure to cite the enabling provision in the rules.

The point on the need to cite the relevant provisions of the law in terms of which the application was made is one of law. It is trite that a point of law can be raised at any stage of the proceedings, and any conceivable prejudice to the party against whom it is raised can be cured by a postponement of the matter to allow that party time to respond. Litigation is however not a game of hide and seek and legal practitioners must desist from withholding critical legal issues and only spring a surprise at the hearing of a matter by way of ambush. The legal point was raised nonchalantly for the first time in the midst of counsel's address, as it had not been flagged in the pleadings or heads of argument. Though somewhat caught off guard, Mr *Banda* did not request a postponement of the matter to enable him to prepare himself to respond to the point.

In motivating the point on the consequences of the failure to cite the relevant provisions of the law in terms of which the application was made, Ms *Chinwadzimba* referred to the cases of *Njanike* v *Mazengwa* SC 1/25; *Hove* v *Zimphos Limited & 2 Ors* SC 8/18 and *Bushu* v *Grain Marketing Board* HH 326/17. In the *Njanike* case, the court struck the matter off the roll on the ground that the applicant had invoked the wrong provisions of the Supreme Court rules in approaching the court for the relief that he craved.

In the *Hove* v *Zimphos* matter, although the court underscored the importance of citing the relevant provision under which an application was made, it nevertheless dismissed the application for condonation of the late noting of an application for rescission of a default judgment on the basis that the applicant had failed to establish good prospects of success in the application for rescission. In the *Bushu* v *Grain Marketing Board* the court also emphasized the need to cite the relevant provision of the law in terms of which an application was made as it attuned the court to its jurisdiction.

From my reading of the above judgments, the court did not find as a matter of legal principle that the mere failure to cite the relevant provision of the law in terms of which an application was made rendered the application fatally defective. Each case must be considered in the context of its own peculiar circumstances. The founding affidavit was intelligible enough to inform the court what matter was before it. The court finds the legal point devoid of merit, and it is accordingly dismissed.

Whether the applicant made a case for condonation

In *Chibanda & 2 Ors* v *City of Harare* SC 83/21, the court highlighted the requirements of an application of this nature as follows:

> "The factors to be considered by the court were outlined by BHUNU JA in *Mzite* v *Damafalls Investment (Pvt) Ltd & Anor* SC 21/18, where he expressed the following at p 2 of the cyclostyled judgment:
>
> > "The requirements for an application of this nature to succeed are well known as outlined in the case of *Kombayi* v *Berkout* 1988 (1) ZLR 53 (S). These are:
> > 1. The extent of the delay;
> > 2. The reasonableness of the explanation for the delay; and
> > 3. The prospects of success on appeal."
>
> Condonation is thus an indulgence granted when the court is satisfied that there is "good and sufficient cause" for condoning the non-compliance with the rules. Good and sufficient cause is assessed by considering, cumulatively, the extent of the delay, the explanation for that delay and the strength of the applicants' case on appeal, or the prospects of its success. See *Bonnyview Estates (Pvt) Ltd* v *Zimbabwe Platinum Mines (Pvt) Ltd & Anor* SC 58/18."

In determining whether an applicant has made out a case for condonation, the court must be satisfied that there is good and sufficient cause for granting the indulgence sought. In doing so, the court must consider collectively, the extent of the delay, the explanation for the delay, the prospects of success and the need to achieve finality in litigation. There is no one size fits all approach as the circumstances of each case will determine how the court must consider the acceptability of the relief sought. It follows that even though the delay may appear inordinate, the explanation for the delay, the prospects of success in the main matter and the need for finality in litigation may sway the court in favour of granting condonation.

The applicant's contention was that after being notified of the withdrawal of her offer letter by the first respondent in November 2011, communication channels were opened. The parties had several engagements, which did not however yield a closure of the matter. The applicant remained in occupation of the farm to this day. The first respondent did not take any further steps to regularise her possession or implement the terms of the withdrawal letter, which were that she was to cease any operations and vacate the farm with immediate effect. She was thus left in a state of doubt and uncertainty.

What makes the applicant's case peculiar is that the first respondent, despite being the authority charged with the implementation of the land reform and resettlement programme, and whose decision is the subject of the intended review application, decided not to oppose the present application. In the absence of a rebuttal of the averments made by the applicant concerning the delay in approaching this court for condonation or the intended review of the first respondent's decision, this court cannot dismiss those averments as being unreasonable or preposterous. As stated earlier, the first respondent advised by way of a letter of 27 October 2023, from the Civil Division of the Attorney General's Office, that it was not opposing the application.

The second respondent dismissed the applicant's explanation for the delay as devoid of substance and unrealistic in the absence proof confirming the alleged engagements with the first respondent. The status of the second respondent warrants some scrutiny in order to give context to its own claims and interest in the farm. It claims that its rights in the farm arose on 4 November 2011 by virtue of an offer letter issued in its favour by the first respondent. According to the second respondent, that offer letter remained valid to date. The document that the second respondent claimed was the offer letter issued by the first respondent reads as follows:

"**HANDOVER OF FARM TO MAHSEER INVESTMENT (Pvt Ltd)**

I am pleased to handover to the **MAHSEER INVESTMENTS (Pvt Ltd)** the following farm, which was compulsorily acquired in **Goromonzi District**, Mashonaland East Province for use by the company.

DISTRICT	**FARM NAME**	**AREA (Ha)**
GOROMONZI	**BUCKLAND ESTATE (S/D WHOLE)**	**280.2765**

Please note that the land in question is for institutional agricultural use by Mahseer Investments (Pvt Ltd) and shall remain state land. The said land may be required for resettlement purposes in future should the need arise." (Underlining for emphasis)

The letter was signed off by the then Minister of Lands and Rural Resettlement, H.M. Murerwa. Counsel for the second respondent was at pains to explain if that letter was indeed an offer letter for purposes of clothing the second respondent with some rights in the farm. The Gazetted Land (Consequential) Provisions Act [*Chapter 20:28*], provides some insights into the nature of documentation that occupants of State land must validly hold in order to assert some rights in that land.

Section 3(1) of that Act proscribes the holding, using or occupying of Gazetted land without lawful authority. Section 2 of the same Act defines lawful authority to mean an offer letter, a permit or a land settlement lease. The document that the second respondent referred to as its offer letter does not portray itself as an offer letter issued for purposes of the land reform and resettlement programme. The letter is subject to the condition that *"the said land may be required for resettlement purposes in future should the need arises"*. That statement suggests that the letter may have been issued for some other purposes other than an offer of land for resettlement purposes.

In the absence of an offer letter properly issued by the first respondent, then the second respondent may not claim to have lawful authority to occupy State land as envisioned by s 2 of the Gazetted Land Act. The said Act became operational on 20 December 2006, long before the second respondent's letter of 4 November 2011, was supposedly issued by the first respondent. The first respondent was therefore aware of the requirements of a valid offer letter at the time that he allegedly issued the letter relied upon by the second respondent. If he intended to issue the second respondent with an offer letter, then there is no reason why he would not have issued an offer letter that complied with the requirements of the said Act.

The draft application for review that the application intends to place before this court if the present application is successful, was attached to the applicant's application. The application for review is premised on the provisions of s 4 of the Administrative Justice Act [*Chapter 10:28*] (the AJA). That section provides that any person who is aggrieved by the failure of an administrative authority to comply with s 3 of the same Act may approach the High Court for appropriate relief.

Section 3 of the AJA requires an administrative authority which has the responsibility to take any administrative action which affects the rights, interests or legitimate expectations of any person to act lawfully, reasonably and in a fair manner amongst other requirements. In terms of s 3(2) of the AJA, in order for an administrative action to be taken in a fair manner, the administrative authority is required to give the affected person: adequate notice of the nature and purpose of the proposed action; and a reasonable opportunity to make adequate representations; and adequate notice of any right of review or appeal where applicable. The first respondent is an administrative authority in terms of s 2 of the AJA.

Once it is demonstrated that the administrative authority failed to act in the manner envisaged under s 3(2), then the aggrieved person is at large to approach the High Court for an order to

compel the administrative authority to supply the reasons for his conduct in terms of s 6(1) of the AJA. However, the wording of s 6(1)(b)(i)(ii) of the AJA does not suggest to me that the relief available to the aggrieved party is just confined to approaching the court for a compelling order, as submitted by Ms *Chinwadzimba*. The mere act of rendering an adverse decision without giving reasons to the affected person makes the decision of the administrative functionary susceptible to review under s 3(1)(a) of the AJA. The aggrieved party does not necessarily have to wait for the administrative authority to perpetuate an unlawful act while waiting for reasons to be furnished. The administrative authority must be able to justify its conduct in response to the application for review if it contends that it acted lawfully.

The lawfulness of the first respondent's decision to withdraw the applicant's offer letter must therefore be considered in the context of the above provisions of the AJA. As submitted by the applicant's counsel, the first respondent's withdrawal letter directed the applicant to cease all operations and immediately vacate the farm. The last paragraph of the letter advised the applicant to make any representations on the issue within seven days of receipt of the notification, if she was so minded. So, while on one hand the applicant was directed to vacate the farm with immediate effect because of the withdrawal of the offer letter, the same letter gave her the latitude to make representations. There appears to be a contradiction in the way the first respondent conducted himself. What would be the point of inviting the applicant to make representations when the same administrative authority had already decided that the applicant must vacate the farm with immediate effect after the receiving the withdrawal letter?

As already noted, in terms of the AJA, administrative conduct that accords with the principles of fairness requires that a person affected by the decision of an administrative authority must be accorded a reasonable opportunity to make representations before that decision is implemented. Whether the first respondent's conduct corresponds with the principles of sound administrative conduct as espoused in s 3 of the AJA is an issue that the court seized with the application for review must interrogate further.

This court is however satisfied that there was not only a reasonable explanation for the delay, but that the prospects of success in the main matter for which condonation is sought are sound. In the spirit of achieving finality in litigation, the applicant must be accorded an opportunity to argue

the review application before the court so that there can be closure in the matter involving her rights to the farm following the alleged withdrawal of her offer letter by the first respondent.

Costs of suit

The parties' respective counsels did not make any submissions on the question of costs. The first respondent was the principal player in this dispute. He decided not to oppose the application. The second respondent's involvement in the matter was rather peripheral. It is not the administrative authority whose decision is the subject of the intended review application. I find it befitting to grant the relief sought with each party bearing its own costs of suit.

Resultantly it is ordered that:

1. The application for condonation be and is hereby granted.
2. The applicant shall file her application for the review of the first respondent's decision within ten (10) days of the granting of this order.
3. Each party shall bear its own costs of suit.

MUSITHU J: …….

Mberi Tagwirei & Associates, the applicant's legal practitioners
Civil Division of the Attorney General, first respondent's legal practitioners
Chimwamurombe Legal Practice, second respondent's legal practitioners